

Missouri section 610.130 filing guide

Correct route and court

This application uses section 610.130 only. Use the court identified in the application, confirmed from the original record.

An application filed with the clerk of the court in which the participant pled guilty or was sentenced (§ 610.130.1). Whether that court opens a new case or accepts the application under the original case number is local practice and is confirmed with the clerk. No Office of the State Courts Administrator form exists for this section, so the application and proposed order are LegalEase-drafted against the statutory contents and the track carries a local-form override for any circuit or municipal division that publishes its own.

Confirm that the court accepts this custom application and proposed order. Use any mandatory local form instead. Confirm whether the application uses the original case number or opens a new case. A new case number and judge assignment remain for the clerk.

Record checks before filing

Missouri Department of Revenue driver record: Order your Missouri driver record from the Department of Revenue. It is the document that shows administrative suspensions and revocations under §§ 302.500 to 302.540 and chemical-test refusals, which are alcohol-related enforcement contacts under § 302.525.3 even where no conviction followed. A participant who answers the enforcement-contact question from memory will very often be wrong.

Out-of-state driver records: Request your driver record from each state where you have been licensed. § 302.525.3 counts a suspension, revocation or conviction in any other state, and § 610.130.4 bars anyone issued or required to hold a commercial driver's licence in any state.

Certified docket sheet and judgment from the court of plea or sentence: Ask the clerk for a certified copy of the docket and the judgment. It establishes the plea or sentencing date the ten-year period runs from, the offense level, and the case number.

Missouri State Highway Patrol criminal record: Order your own criminal record. It supports the agency list and the no-subsequent-conviction condition. Confirm current fees with the Patrol.

Alcohol-related enforcement contacts - section 302.525.3

For purposes of this section, "alcohol-related enforcement contacts" shall include any suspension or revocation under sections 302.500 to 302.540, any suspension or revocation entered in this or any other state for a refusal to submit to chemical testing under an implied consent law, and any conviction in this or any other state for a violation which involves driving while intoxicated, driving while under the influence of drugs or alcohol, or driving a vehicle while having an unlawful alcohol concentration.

An administrative suspension or chemical-test refusal can matter even without a criminal conviction. Compare actual Missouri and out-of-state driver records. Stop for legal help if an entry is ambiguous; this packet does not decide the legal meaning of an individual entry.

Timing, first offense and once-in-a-lifetime choice

Wait at least ten years from the plea or conviction. The required hearing tests subsequent convictions, subsequent alcohol-related enforcement contacts, and pending offenses or enforcement actions at the hearing. Do not substitute section 610.140.

Section 610.130 permits one expungement under that section. The application states firstness and other qualifying facts only as the participant's own allegations; the court determines them. Relief is mandatory when the statutory findings are made.

Review every allegation and record before personally signing and dating. Ask the clerk whether local acknowledgment or notarization is required; no notarization is prescribed by this section.

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Official companions and protected blanks

FI-05 is included only when a new circuit or associate circuit case is opened and the court requires it. Its Case Type Code and Case Type Description remain REQUIRED BEFORE FILING for clerk confirmation: the held case-types list does not name this specific statute. Do not borrow X5 or XG from a different route. The clerk supplies the Filing Date, Case number and Judge or Division. The full official trailing pages and submitter fields are retained.

GN10 is included only when the applicant requests a waiver, supplies actual financial facts and confirms the court accepts it. Review all income, spouse/dependent facts, expenses, property and debt entries, then personally sign Your Signature and Date. GN10 references the complete agency-address inventory headed Agencies identified from my records in this application. Review that supplied inventory before filing. Do not fill the clerk's Date File Stamp or court assignment fields.

Leave every proposed-order finding, grant/deny choice, court direction, order date and judicial signature for the court. Do not obtain a signed order as a prerequisite to filing.

Filing costs and waiver

Not fixed by the section and county-variable. The participant confirms the filing fee and costs with the clerk of the court of plea before filing. No fee figure is published on this track. The participant separately pays for the driver record, the certified docket and the Highway Patrol search.

GN10 under Rule 77.03 and § 514.040 where the filing court accepts the statewide form. Municipal divisions vary, and the participant confirms with the clerk.

Record retrieval costs are separate from filing costs. No fixed filing fee or waiver outcome is promised.

Hearing, notice and actual service

Not prescribed by § 610.130, which requires a hearing but names no notice recipients. In practice the respondents named in the application — the prosecuting or city attorney, the arresting agency, the Highway Patrol and the Department of Revenue — are the entities whose records the order would reach, and the packet directs the participant to ask the clerk how that court notices them. Whether the participant or the clerk gives notice is a local-practice question the packet does not answer for them.

Not prescribed by the section. The packet includes a certificate of service the participant may complete if the clerk directs that the applicant serve the named respondents, and leaves it blank otherwise.

Ask the clerk who gives any required notice, how, to whom, the copy count and whether any hearing is scheduled. The certificate is used only for court-directed actual service; supply its recipients, destinations, documents, method and dates only after service.

After a ruling

Obtain a copy of the entered ruling and ask the clerk about distribution to the identified record custodians, including the Department of Revenue where applicable. Section 610.130 controls the effect and confidentiality of the official records; do not assume a private database or a separate matter disappears. Officials may retain records needed to enforce the one-expungement limit.

Stop and obtain individual legal help

Every intoxication-related matter. The review refers all of them, and the ten-year clean-record showing plus the once-in-a-lifetime consequence make this unsuitable for unassisted self-help; the packet is generated with an attorney-review recommendation on its face.

The driver record shows any suspension, revocation or refusal entry the participant cannot explain.

Any out-of-state licence, conviction, suspension or revocation.

Any commercial driver licence has ever been issued in any state, or the participant's work requires one.

Whether an entry is an alcohol-related enforcement contact under § 302.525.3 is arguable.

The participant is unsure whether the offense was truly their first.

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Any intoxication-related matter or enforcement action is pending.

The prosecutor or a named agency opposes, or the court sets a contested hearing.

The participant is weighing whether to spend the one lifetime expungement now or wait.

The participant is not a United States citizen or there is any immigration consequence.

The participant asks about the effect on insurance, employment as a driver, or licensing.

Review fixture notice

These sample facts are synthetic. Do not file this review packet. A build creates no commercial or participant-delivery authority.